

CV-25-001000 PUENTES, JARED vs CROSKREY, PAUL - Defendant and Cross-Complainant Paul Croskrey's Motion to Compel Further Responses to Special Interrogatories and for Discovery Sanctions Against Plaintiff and His Counsel in the Amount of \$4,632 – DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: Defendant submitted a motion to compel pursuant to California Code of Civil Procedure section 2030.300 on May 26, 2026. Plaintiff opposed and served supplemental responses concurrently with its opposition papers. Defendant replied. "Any party may obtain discovery . . . by propounding to any other party to the action written interrogatories to be answered under oath." (Code Civ. Proc., § 2030.010.) "A party may propound to another party . . . [t]hirty-five specially prepared interrogatories that are relevant to the subject matter of the pending action." (Code Civ. Proc., § 2030.030.) A motion to compel "shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2030.300.) "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040.) "The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.300.) Here, the motion is procedurally defective. There was no attempt to meet and confer either in person, by telephone, or by videoconference. The only attempt to comply with Code of Civil Procedure § 2030.300 was the delivery of a letter sent as an attachment to an email on May 13, 2026. A letter sent by email is insufficient. The Legislature's specification of the authorized methods for meeting and conferring reflects its belief that more personal forms of communication—beyond written exchanges—are better suited to resolving disputes informally, thereby reducing the burden on both the courts and the parties. Accordingly, the motion is DENIED. Plaintiff did not respond to moving party's request to meet and confer. Parties should not receive a windfall for failing to respond to a moving party and/or failing to meet and confer. The Court finds the circumstances here make the imposition of sanctions unjust and declines to issue them.

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Accordingly, the motion is DENIED. Plaintiff did not respond to moving party's request to meet and confer. Parties should not receive a windfall for failing to respond to a moving party and/or failing to meet and confer. The Court finds the circumstances here make the imposition of sanctions unjust and declines to issue them.